

FOURTH JUDICIAL DISTRICT - PROVO DISTRICT COURT
UTAH COUNTY, STATE OF UTAH

STATE OF UTAH vs. JOSEPH EDWARD FERRERI

CASE NUMBER 211400304 State Felony

CHARGES

Charge 1 - 76-10-1306 - AGGRAVATED EXPLOITATION OF PROSTITUTION - 2nd Degree Felony

Offense Date: October 13, 2020

Location: UTAH COUNTY, UT

Disposition: December 08, 2021 Dismissed (w/o prej)

Charge Subject To Minimum Mandatory Sentence

Charge 2 - 76-10-1603 - PATTERN OF UNLAW ACTIVITY - 2nd Degree Felony

Offense Date: October 13, 2020

Location: UTAH COUNTY, UT

Disposition: December 08, 2021 Dismissed (w/o prej)

Charge 3 - 76-5-308 - HUMAN TRAFFICKING - 2nd Degree Felony

Offense Date: October 13, 2020

Location: UTAH COUNTY, UT

Disposition: December 08, 2021 Dismissed (w/o prej)

Charge 4 - 76-10-1903 - MONEY LAUNDERING - 2nd Degree Felony

Offense Date: October 13, 2020

Location: UTAH COUNTY, UT

Disposition: December 08, 2021 Dismissed (w/o prej)

Case Subject To Minimum Mandatory Sentence

CURRENT ASSIGNED JUDGE

THOMAS LOW

PARTIES

Plaintiff - STATE OF UTAH

Represented by: PETER REICHMAN

Represented by: JEFFREY GRAY

Defendant - JOSEPH EDWARD FERRERI

Represented by: LINDSAY JARVIS

DEFENDANT INFORMATION

Defendant Name: JOSEPH EDWARD FERRERI

Offense Tracking Number: 60808706

Date of Birth: November 03, 1966

Jail Booking Number: 401952

Law Enforcement Agency: AMERICAN FORK POLICE

LEA Case Number: 21AF00967

Officer Name: S LOTT

Prosecuting Agency: UTAH COUNTY

Agency Case Number: 21B-247-5

Arrest Date: February 04, 2021
Violation Date: 10-13-2020

ACCOUNT SUMMARY

Paper Bond Totals Posted:	5,000.00
Forfeited:	0.00
Exonerated:	5,000.00
Balance:	0.00

NONMONETARY BOND DETAIL - TYPE: Unsecured

Posted By: JOSEPH EDWARD FERRERI (#bond)	
Posted:	5,000.00
Forfeited:	0.00
Exonerated:	5,000.00
Balance:	0.00

CASE NOTE

PROCEEDINGS

DATE	SEQ	EVENT
02-06-2021	2	Filed: Promise To Appear (INA 3/8/21 @ 3:00pm)
02-11-2021	1	Filed: INFORMATION
02-11-2021		Case filed by efiler
02-11-2021		Filed: From an Information
02-11-2021		Judge THOMAS LOW assigned.
02-11-2021		Note: DEF Email Address changed to dukstamp@yahoo.com
02-11-2021		Cancelled: INITIAL APPEARANCE scheduled on March 08, 2021 at 03:00 PM in 5th Fl, Courtroom 5A with Judge CHRISTINE JOHNSON
02-11-2021		Note: DEF Email Address changed from dukstamp@yahoo.com
02-11-2021		Note: DEF Email Address changed to duckstamp@yahoo.com
02-11-2021		Note: Unsecured Bond
02-11-2021		Bond Account created Total Due: 5,000.00
02-11-2021		Bond Posted Non-Monetary Bond: 5,000.00
02-11-2021		Filed: FERRERI JOSEPH EDWARD 5000.00
02-11-2021		Judge JAMES BRADY assigned.
02-11-2021	3	Filed: Probable Cause Affidavit
02-11-2021	4	Filed: Order to Release with Conditions
02-12-2021	5	Filed: Return of Electronic Notification
02-22-2021	6	Filed: Appearance of Counsel/Notice of Limited Appearance
02-22-2021	7	Filed: Request for Discovery
02-22-2021	8	Filed: Return of Electronic Notification
02-26-2021		NOTICE for Case 211400304 ID 21606738
02-26-2021		NOTICE for Case 211400304 ID 21606739
		Date:
		The reason for the change is Correct calendar
02-26-2021		Rescheduled: INITIAL APPEARANCE rescheduled to March 08, 2021 at 03:00 PM in 4th Fl, Courtroom 4A with Judge THOMAS LOW
03-08-2021		Minute Entry - INITIAL APPEARANCE
		Judge: THOMAS LOW

PRESENT
Prosecutor: POMEROY, ADAM
Defendant Present
The defendant is not in custody
Defendant's Attorney(s): JARVIS, LINDSAY
Clerk: rosew
Audio
Tape Number: WebEx/4A Tape Count: 3:44-3:46

INITIAL APPEARANCE
A copy of the Information is given to the defendant.
Defendant waives reading of Information.
Advised of charges and penalties.

PRELIMINARY HEARING-WAIVE is scheduled.
Date: 03/31/2021
Time: 09:30 a.m.
Location: 4th Fl, Courtroom 4A
Before Judge: THOMAS LOW
FOURTH DISTRICT COURT
137 N FREEDOM BLVD
PROVO, UT 84601

CUSTODY
The defendant is not in custody.

03-09-2021 Canceled: PRELIMINARY HEARING-WAIVE scheduled on March 31, 2021 at 09:30 AM in 4th Fl, Courtroom 4A with Judge THOMAS LOW
03-09-2021 Judge THOMAS LOW assigned.
03-10-2021 9 Filed: Return of Electronic Notification
03-31-2021 Minute Entry - CONTINUANCE WAIVER HEARING
Judge: THOMAS LOW

PRESENT
Prosecutor: PERKINS, M JARED
Defendant Present
The defendant is not in custody
Defendant's Attorney(s): JARVIS, LINDSAY
Clerk: elizaf
Tape Number: 4A-Webex Tape Count: 951-953

CONTINUANCE
Whose Motion: The Stipulation of counsel.
Reason for continuance:
Counsel's request.
The motion is granted.

SECOND WAIVER HEARING is scheduled.
Date: 04/28/2021
Time: 09:30 a.m.
Before Judge: THOMAS LOW
This hearing will not take place at the courthouse.
It will be conducted remotely.
Contact the court to provide your current email address.
If you do not have access to a phone or other electronic device to appear remotely, notify the court.

04-01-2021 10 Filed: Request for Discovery Supplemental Discovery Request

04-01-2021 11 Filed: Return of Electronic Notification

04-05-2021 Cancelled: SECOND WAIVER HEARING scheduled on April 28, 2021 at 09:30 AM in 4th Fl, Courtroom 4A with Judge THOMAS LOW

04-05-2021 12 Filed: Return of Electronic Notification

04-28-2021 Minute Entry - CONTINUANCE SECOND WAIVER HEARING
Judge: THOMAS LOW
PRESENT
Prosecutor: REICHMAN, PETER
Defendant Present
The defendant is not in custody
Defendant's Attorney(s): JARVIS, LINDSAY
Interpreter: Victoria Wang (Mandarin)
Clerk: elizaf
Language: Mandarin
Audio
Tape Number: 4A-Webex Tape Count: 957-1001
CONTINUANCE
Whose Motion: The Stipulation of counsel.
Reason for continuance:
Counsel's request.
The motion is granted.
THIRD WAIVER HEARING is scheduled.
Date: 06/09/2021
Time: 09:30 a.m.
Before Judge: THOMAS LOW
This hearing will not take place at the courthouse.
It will be conducted remotely.
Contact the court to provide your current email address.
If you do not have access to a phone or other electronic device to appear remotely, notify the court.

05-03-2021 Cancelled: THIRD WAIVER HEARING scheduled on June 09, 2021 at 09:30 AM in 4th Fl, Courtroom 4A with Judge THOMAS LOW

05-03-2021 Modified: THIRD WAIVER HEARING scheduled on June 09, 2021 at 09:30 AM in 4th Fl, Courtroom 4A with Judge THOMAS LOW

05-03-2021 Cancelled: THIRD WAIVER HEARING scheduled on June 09, 2021 at 09:30 AM in 4th Fl, Courtroom 4A with Judge THOMAS LOW

05-04-2021 13 Filed: Return of Electronic Notification

06-09-2021 Cancelled: FOURTH WAIVER HEARING scheduled on July 28, 2021 at 09:30 AM in 4th Fl, Courtroom 4A with Judge THOMAS LOW

06-09-2021 Continued: FOURTH WAIVER HEARING scheduled on July 28, 2021 at 09:30 AM in 4th Fl, Courtroom 4A with Judge THOMAS LOW

06-09-2021 Modified: FOURTH WAIVER HEARING scheduled on July 28, 2021 at 09:30 AM in 4th Fl, Courtroom 4A with Judge THOMAS LOW

06-09-2021 Minute Entry - CONTINUANCE THIRD WAIVER HEARING
Judge: THOMAS LOW
PRESENT
Prosecutor: REICHMAN, PETER
Defendant Present

The defendant is not in custody
Defendant's Attorney(s): JARVIS, LINDSAY
Clerk: ambere
Audio
Tape Number: 4A/WebEx Tape Count: 9:54-9:54

CONTINUANCE

Whose Motion: The Defendant's counsel LINDSAY JARVIS.
Reason for continuance:
Counsel's request.
The motion is granted.

FOURTH WAIVER HEARING.

Date: 07/28/2021
Time: 09:30 a.m.
Before Judge: THOMAS LOW
The reason for the change is Clerk error.
This hearing will not take place at the courthouse.
It will be conducted remotely.
Contact the court to provide your current email address.
If you do not have access to a phone or other electronic device to appear remotely, notify the court.

07-28-2021 Cancelled: FIFTH WAIVER HEARING scheduled on July 28, 2021 at 09:30 AM in 4th Fl, Courtroom 4A with Judge THOMAS LOW

07-28-2021 Rescheduled: FIFTH WAIVER HEARING rescheduled to September 22, 2021 at 09:30 AM in 4th Fl, Courtroom 4A with Judge THOMAS LOW

07-28-2021 Minute Entry - CONTINUANCE

Judge: THOMAS LOW

PRESENT

Prosecutor: REICHMAN, PETER
Defendant Present
The defendant is not in custody
Defendant's Attorney(s): JARVIS, LINDSAY
Clerk: malloryw
Audio
Tape Number: 4A/Webex Tape Count: 9:47-9:48

CONTINUANCE

Whose Motion: The Stipulation of counsel.
Reason for continuance:
Counsel's request.
State to provide discovery to defendant's counsel by 8/4/2021.
The motion is granted.

FIFTH WAIVER HEARING is scheduled.

Date: 07/28/2021
Time: 09:30 a.m.
Before Judge: THOMAS LOW
The reason for the change is Clerk error.

FIFTH WAIVER HEARING.

Date: 09/22/2021
Time: 09:30 a.m.
Before Judge: THOMAS LOW

This hearing will not take place at the courthouse.
It will be conducted remotely.
Contact the court to provide your current email
address.
If you do not have access to a phone or other
electronic device to appear remotely, notify the
court.

09-21-2021 14 Filed: Motion for State of Utah to Have Recordings
Provided Through Discovery Transcribed

Filed by: JOSEPH EDWARD FERRERI

09-21-2021 15 Filed: Return of Electronic Notification

09-22-2021 Minute Entry - CONTINUANCE FIFTH WAIVER HEARING

Judge: THOMAS LOW

PRESENT

Prosecutor: SAGUIBO, CHARLOTTE

Defendant Present

The defendant is not in custody

Defendant's Attorney(s): JARVIS, LINDSAY

Clerk: ambere

Audio

Tape Number: 4A/WebEx Tape Count: 9:40-10:07

CONTINUANCE

Whose Motion: The Defendant's counsel LINDSAY
JARVIS.

Reason for continuance:

Counsel's request.

The motion is granted.

HEARING

TIME: 3:48 PM . This matter comes before the court
for a waiver hearing. Mr. Law, counsel for a co-
defendant, addresses the court regarding some
discovery issues. He has filed a motion in the co-
defendant case, 211400279, for the state to pay for
transcription of the videos that are in Chinese.

The court questions Ms. Saguibo. Ms. Saguibo states
that Mr. Reichman had only a few minutes to review
the motion and the state will need more time to
decide if that is something they will stipulate to
or if they intend to file a response to the motion.

The court addresses the parties regarding discovery.
The last hearing date was continued to today to
allow discovery to be completed. Co-defendant
counsel, Lindsay Jarvis addresses the court.
Discussion regarding a preliminary hearing. Further
discussion with co-defendant counsel.

The court notifies all counsel that if any of them
believes that there have been delays regarding
discovery then maybe motions to compel should be
filed.

SIXTH WAIVER HEARING is scheduled.

Date: 10/27/2021

Time: 09:30 a.m.

Before Judge: THOMAS LOW

This hearing will not take place at the courthouse.
It will be conducted remotely.

Contact the court to provide your current email
address.

If you do not have access to a phone or other electronic device to appear remotely, notify the court.

09-24-2021 SIXTH WAIVER HEARING scheduled on October 27, 2021 at 09:30 AM in 4th Fl, Courtroom 4A with Judge THOMAS LOW

09-25-2021 16 Filed: Return of Electronic Notification

10-04-2021 17 Filed: Motion to Compel Discovery

Filed by: JOSEPH EDWARD FERRERI

10-04-2021 18 Filed: Order (Proposed) to Compel Discovery

10-04-2021 19 Filed: Return of Electronic Notification

10-06-2021 21 Filed: Order (Proposed) for State to Have Recordings Transcribed

10-06-2021 20 Filed: Request/Notice to Submit

10-06-2021 22 Filed: Return of Electronic Notification

10-22-2021 23 Filed: Request/Notice to Submit

10-22-2021 24 Filed: Return of Electronic Notification

10-26-2021 25 Filed: Objection to Motion for State of Utah to Have Recordings Provided Through Discovery Transcribed

10-26-2021 26 Filed: Return of Electronic Notification

10-27-2021 27 Filed order: Order for State to Have Recordings Transcribed

Judge THOMAS LOW

Signed October 27, 2021

10-27-2021 28 Filed: Return of Electronic Notification

10-27-2021 Cancelled: PRELIMINARY HEARING scheduled on December 09, 2021 at 01:30 PM in 5th Fl, Courtroom 5B with Judge THOMAS LOW

10-27-2021 Minute Entry - SIXTH WAIVER HEARING

Judge: THOMAS LOW

PRESENT

Prosecutor: REICHMAN, PETER

Defendant Present

The defendant is not in custody

Defendant's Attorney(s): JARVIS, LINDSAY

Clerk: malindag

Audio

Tape Number: WebEx/4A Tape Count: 9:46-10:38

HEARING

This matter comes before the court for a waiver hearing. The court requests Mr. Reichman to respond to the defense's motion to compel. Mr. Reichman responded that he filed the state's opposition to the motion last night and Rule 16 does not compel the State of Utah to transcribe every interview produced in discovery. Ms. Jarvis addresses the court and requests that any discovery the state intends to use should be translated and provided to defense. The court grants the motion for the state to comply with Rule 16. Ms. Jarvis to prepare the order.

Ms. Jarvis addresses the court, referencing Rule 25. Ms. Jarvis motions the court to dismiss charges against the defendant as there has been an unreasonable delay in proceeding with this case. Mr. Reichman responds. Ms. Jarvis replies. Court denies the motion to dismiss.

A preliminary hearing is requested by counsel. No objection, court grants the request.

PRELIMINARY HEARING is scheduled.
Date: 12/09/2021
Time: 01:30 p.m.
Before Judge: THOMAS LOW
This hearing will not take place at the courthouse.
It will be conducted remotely.
Contact the court to provide your current email address.
If you do not have access to a phone or other electronic device to appear remotely, notify the court.

10-29-2021 29 Filed: Return of Electronic Notification
11-01-2021 30 Filed order: SIXTH WAIVER HEARING
Judge THOMAS LOW
Signed November 01, 2021
11-02-2021 31 Filed: Return of Electronic Notification
11-05-2021 32 Filed: Other - Not Signed Order (Proposed) to Compel Discovery
11-05-2021 Note: Moot
11-05-2021 33 Filed: Return of Electronic Notification
12-08-2021 Charge 1 Disposition is Dismissed (w/o
12-08-2021 Charge 2 Disposition is Dismissed (w/o
12-08-2021 Charge 3 Disposition is Dismissed (w/o
12-08-2021 Charge 4 Disposition is Dismissed (w/o
12-08-2021 Case Closed
Disposition Judge is THOMAS LOW
12-08-2021 35 Filed: Motion Stipulated Motion to Dismiss
Filed by: STATE OF UTAH
12-08-2021 36 Filed: Order (Proposed) to Dismiss
12-08-2021 34 Filed: Request/Notice to Submit
12-08-2021 37 Filed: Return of Electronic Notification
12-08-2021 Cancelled: PRELIMINARY HEARING scheduled on December 09, 2021 at 01:30 PM in 5th Fl, Courtroom 5B with Judge THOMAS LOW
Reason: Case was Dismissed
12-08-2021 38 Filed order: Order to Dismiss
Judge THOMAS LOW
Signed December 08, 2021
12-08-2021 39 Filed: Return of Electronic Notification
12-09-2021 Bond Exonerated -5,000.00
03-17-2023 Note: Attorney DAVID LEAVITT Bar Number 5990 Bar State UT Auto Withdraw